

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUWM062392: DEANNA NUNEZ vs VENTURA COUNTY EMPLOYEES'
RETIREMENT ASSOCIATION**

06/24/2026 in Department 44

Motion for Leave to File Complaint-In-Intervention

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: County of Ventura (“County”) Unopposed Motion for Leave to File Complaint-in-Intervention

Tentative Ruling:

County’s Motion for Leave to File Complaint-in-Intervention is GRANTED.

The Court grants County’s request for judicial notice of VCERA’s Disability Hearing Procedures. (Evid. Code, § 452, subd. (h), 453.)

I. Legal Standard: Mandatory and Permissive Intervention

“An intervention takes place when a nonparty, deemed an intervenor, becomes a party to an action or proceeding between other persons by doing any of the following: (1) Joining a plaintiff in claiming what is sought by the complaint. (2) Uniting with a defendant in resisting the claims of a plaintiff. (3) Demanding anything adverse to both a plaintiff and a defendant.” (Code Civ. Proc., § 387, subd. (b).)

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“A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.” (*Id.*, subd. (c).) The Court must permit a nonparty to intervene in certain circumstances: “The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person’s ability to protect that interest, unless that person’s interest is adequately represented by one or more of the existing parties.” (*Id.*, subd. (d)(1).)

“[T]o establish mandatory intervention, a proposed intervenor must show (1) an interest relating to the *property [or] transaction* which is the subject of the action; (2) the party is so situated that the disposition of the action may as a practical matter impair or impede that person’s ability to protect that interest; and (3) the party is not adequately represented by existing parties.” (*Edwards v. Heartland Payment Systems, Inc.* (2018) 29 Cal.App.5th 725, 732 [internal quotation marks omitted; italics in original].)

Subdivision (d)(1) “should be liberally construed in favor of intervention.” (*Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 572 [quoting *Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200].)

The Court may also permit intervention, upon a timely application, if a nonparty “has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” (*Id.*, subd. (d)(2).) “Under this provision, the trial court has discretion to permit a nonparty to intervene where the following factors are met: (1) the proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action. [Citation.]” (*Edwards, supra*, 29 Cal.App.5th at p. 736 [internal quotation marks omitted].)

“If leave to intervene is granted by the court, the intervenor shall do both of the following: (1) Separately file the complaint in intervention, answer in intervention, or both. (2) Serve a copy of the order, or notice of the court’s decision or order, granting leave to intervene and the pleadings in intervention as follows: (A) A party to the action or proceeding who has not yet appeared shall be served in the same manner for service of summons pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2. (B) A party who has appeared in the action or proceeding, whether represented by an attorney or not represented by an attorney, shall be served in the same manner for service of summons pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2, or in the manner provided by Chapter 5 (commencing with Section 1010) of Title 14 of Part 2.” (Code Civ. Proc., § 387, subd. (e).)

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II. Application

The County has a legally cognizable interest in the proceeding. Under the County Employees Retirement Law of 1937 (“CERL”), both the County and its employees make regular contributions to the pension fund. (See generally Gov. Code, §§ 31450-31898.) VCERA’s participation is not discretionary but rather is required. (*County of Alameda v. Board of Retirement* (1988) 46 Cal.3d 902, 908 [“County is required to participate in the retirement system, which is funded by both County and employee-member contributions.”].)

The Supreme Court briefly summarized the interaction between CERL and the state’s counties in *Alameda County Deputy Sheriff’s Assn. v. Alameda County Employees’ Retirement Assn.* (2020) 9 Cal.5th 1032, stating:

CERL governs the pension systems maintained by many of the state’s counties. Each county system is administered by its own retirement board, which is tasked with implementing CERL’s provisions. Under CERL, the amount of an employee’s pension benefit is determined as a percentage of the “compensation earnable” received by the employee during a representative year of county employment.

(*Id.* at p. 1052; see also *In re Ret.Cases. Eight Coordinated Cases* (2003) 110 Cal.App.4th 426, 433.)

Retirement boards are separate legal entities that manage the system. (County of Alameda, *supra*, 46 Cal.3d at p. 908 [“The Board, which is a separate legal entity, is responsible for managing the system.” (citing Gov. Code, § 31520).].) In *County of Alameda*, the Supreme Court held that the Court of Appeal properly concluded that the trial court had properly applied the independent judgment test. (*Id.* at p. 910.) In reaching this conclusion, the Supreme Court stated:

Although the employees had a fundamental vested right in their eligibility-to-benefits determination, the employer could not also invoke the independent judgment test unless it could claim its own such right.

(*Id.* at p. 908; see also *Interstate Brands v. Unemployment Ins. Appeals Bd.* (1980) 26 Cal.3d 770, 780 and *Sierra Club v. California Coastal Zone Conservation Com.* (1976) 58 Cal.App.3d 149, 155-156 [“[A] party has no standing to assert that an independent judgment review rather than a substantial evidence review is required unless it possesses a fundamental vested right on its own behalf which was involved in an administrative agency’s action.” (quoted in *Interstate Brands*)].)

The County has established an interest in the proceedings but has not established grounds for mandatory intervention. This is because the County has not shown that disposition of the writ proceeding will as a practical matter impair or impede its ability to protect that interest or that respondent VCERA’s counsel will not adequately represent the County’s interests. (*Edwards*, *supra*, 29 Cal.App.5th at p. 732.) However, the Court exercises its discretion to permit the County to intervene under subdivision (d)(2). The County has followed proper procedures to intervene and has a direct and immediate interest in the proceeding. Further, permitting the County to intervene will not enlarge the issues. Finally, the motion is unopposed.

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III. Disposition

The County's motion is GRANTED. The County is ordered to file its pleading in intervention within 10 days and otherwise comply with Code of Civil Procedure section 387, subdivision (e).)

County shall give notice of this ruling.